

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DON-TAY JEREMIAH,

Index No.: 515898/2018

Plaintiff,

-against-

**AMENDED VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER JAMES
SEDER, POLICE DETECTIVE GOADDARD, POLICE
OFFICER ANGEL and JOHN DOES-Police Officers as yet
unidentified,

Defendants.

-----X

Plaintiff by his attorneys, **RUBENSTEIN & RYNECKI, ESQS.**, complaining of the
defendants herein, upon information and belief, respectfully show to this Court, and alleges as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF DON-TAY JEREMIAH**

1. That at all times hereinafter mentioned, plaintiff **DON-TAY JEREMIAH**, was and
still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**,
was and still is a municipal corporation, duly organized and existing pursuant to the laws of the
State of New York.
3. That the defendant, **THE CITY OF NEW YORK**, maintains a police force known
as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on May 4, 2018, and within the time prescribed by law, a sworn
Notice of Claim stating, among other things, the time when and place where the injuries and

damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter **THE CITY OF NEW YORK** refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on July 2, 2018, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

6. That on April 6, 2018, and at all times hereinafter mentioned and upon information and belief, the defendant, **THE CITY OF NEW YORK**, employed **POLICE OFFICER JAMES SEDER, POLICE DETECTIVE GOADDARD, POLICE OFFICER ANGEL and JOHN DOES-Police Officers** as yet unidentified, as agents, servants and/or employees.

7. That on April 6, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **DON-TAY JEREMIAH**, was lawfully present at or about the premises known as 407 Montauk Avenue, more specifically in the hallway in front of Apartment 1A, in the County of Kings, City and State of New York.

8. That on April 6, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **DON-TAY JEREMIAH**, was falsely arrested by defendants, **POLICE OFFICER JAMES SEDER, POLICE DETECTIVE GOADDARD, POLICE OFFICER ANGEL and JOHN DOES-Police Officers** as yet unidentified, who were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**, at the aforementioned location.

9. That on April 6, 2018, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

10. That on April 6, 2018, and at all times hereinafter mentioned and upon information

and belief the defendants, **POLICE OFFICER JAMES SEDER, POLICE DETECTIVE GOADDARD, POLICE OFFICER ANGEL and JOHN DOES-Police Officers** as yet unidentified, who falsely arrested the plaintiff, **DON-TAY JEREMIAH**, were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**.

11. That on April 6, 2018, and at all times hereinafter mentioned and upon information and belief, the false arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

12. That as a result of the aforesaid false arrest and confinement, plaintiff, **DON-TAY JEREMIAH**, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

13. By the reason of the foregoing, the plaintiff, **DON-TAY JEREMIAH**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF DON-TAY JEREMIAH**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That the defendant, **THE CITY OF NEW YORK**, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, **POLICE OFFICER JAMES SEDER, POLICE DETECTIVE GOADDARD, POLICE OFFICER ANGEL and JOHN DOES-Police Officers** as yet unidentified, who falsely arrested and violated

the civil rights of the plaintiff, **DON-TAY JEREMIAH**.

16. That the defendant, **THE CITY OF NEW YORK**, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, **POLICE OFFICER JAMES SEDER, POLICE DETECTIVE GOADDARD, POLICE OFFICER ANGEL and JOHN DOES-Police Officers** as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, **DON-TAY JEREMIAH**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF DON-TAY JEREMIAH**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That on April 6, 2018, and at all times hereinafter mentioned and upon information and belief, the defendants, **POLICE OFFICER JAMES SEDER, POLICE DETECTIVE GOADDARD, POLICE OFFICER ANGEL and JOHN DOES-Police Officers** as yet unidentified, were working within the scope of their employment when they, without justification and without probable cause, arrested and imprisoned the plaintiff **DON-TAY JEREMIAH**.

20. That on April 6, 2018, and at all times hereinafter mentioned and upon information and belief, arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, **DON-TAY JEREMIAH**, sustained serious permanent personal injuries along with humiliation, shame,

indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

22. By the reason of the foregoing, the plaintiff, **DON-TAY JEREMIAH**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF DON-TAY JEREMIAH**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. That on April 6, 2018, and at all times hereinafter mentioned and upon information and belief, **POLICE OFFICER JAMES SEDER, POLICE DETECTIVE GOADDARD, POLICE OFFICER ANGEL and JOHN DOES-Police Officers** as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff **DON-TAY JEREMIAH**.

25. That the defendants, **POLICE OFFICER JAMES SEDER, POLICE DETECTIVE GOADDARD, POLICE OFFICER ANGEL and JOHN DOES-Police Officers** as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, **DON-TAY JEREMIAH**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF DON-TAY JEREMIAH**

27. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. That the defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER JAMES SEDER, POLICE DETECTIVE GOADDARD, POLICE OFFICER ANGEL and JOHN DOES-Police Officers** as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff, **DON-TAY JEREMIAH** through their actions.

29. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, **DON-TAY JEREMIAH**.

30. That as a result of said intentional and negligent acts, the plaintiff, **DON-TAY JEREMIAH**, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

31. By reason of the foregoing, the plaintiff, **DON-TAY JEREMIAH**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF DON-TAY JEREMIAH**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. That on April 6, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER JAMES SEDER, POLICE DETECTIVE GOADDARD, POLICE OFFICER ANGEL and JOHN DOES-Police Officers** as yet

unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

34. That on April 6, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER JAMES SEDER, POLICE DETECTIVE GOADDARD, POLICE OFFICER ANGEL and JOHN DOES-Police Officers** as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, **DON-TAY JEREMIAH**.

35. That on April 6, 2018, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff, **DON-TAY JEREMIAH** sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

36. By reason of the foregoing, plaintiff, **DON-TAY JEREMIAH**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF DON-TAY JEREMIAH**

37. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "36" inclusive with the same force and effect as if more fully set forth at length herein.

38. The defendant, **THE CITY OF NEW YORK**, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, **DON-TAY JEREMIAH**.

39. The defendant, **THE CITY OF NEW YORK**, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to **POLICE OFFICER JAMES SEDER, POLICE DETECTIVE GOADDARD, POLICE OFFICER ANGEL and JOHN DOES-Police Officers** as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

40. The defendant, **THE CITY OF NEW YORK**, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

41. The defendant, **THE CITY OF NEW YORK**, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to **POLICE OFFICER JAMES SEDER, POLICE DETECTIVE GOADDARD, POLICE OFFICER ANGEL and JOHN DOES-Police Officers** as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

42. The defendant, **THE CITY OF NEW YORK**, at all relevant times, was aware that these individual defendants, including but not limited to **POLICE OFFICER JAMES SEDER, POLICE DETECTIVE GOADDARD, POLICE OFFICER ANGEL and JOHN DOES-Police Officers** as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

43. As a direct and proximate result of this unlawful conduct, the plaintiff, **DON-TAY JEREMIAH**, sustained the damages hereinbefore alleged.

AS AND FOR AN EIGHTH CAUSE OF ACTION FOR

PUNITIVE DAMAGES ON BEHALF OF DON-TAY JEREMIAH

44. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "43" inclusive with the same force and effect as if more fully set forth at length herein.

45. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

46. That the defendant, **THE CITY OF NEW YORK**, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to **POLICE OFFICER JAMES SEDER, POLICE DETECTIVE GOADDARD, POLICE OFFICER ANGEL and JOHN DOES-Police Officers** as yet unidentified, herein-above alleged.

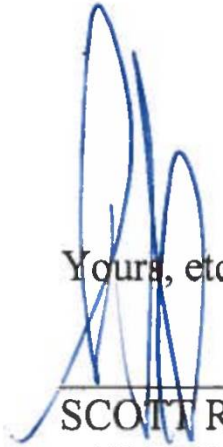
47. By the reason of the foregoing, the plaintiff, **DON-TAY JEREMIAH**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, **DON-TAY JEREMIAH**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, **DON-TAY JEREMIAH**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, **DON-TAY JEREMIAH**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, **DON-TAY JEREMIAH**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, **DON-TAY JEREMIAH**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts

on the **Fifth** Cause of Action; plaintiff, **DON-TAY JEREMIAH**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Court on the **Sixth** Cause of Action; plaintiff, **DON-TAY JEREMIAH** demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, **DON-TAY JEREMIAH** demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eight** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
August 16, 2018

Yours, etc.,



SCOTT RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020

VERIFICATION BY AFFIDAVIT

STATE OF NEW YORK, COUNTY OF KINGS ss:

DON-TAY JEREMIAH, being duly sworn, says:

I am a Plaintiff In the action herein: I have read the annexed

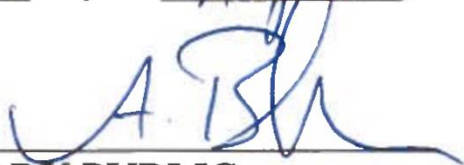
Amended Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: Brooklyn, New York

August 16, 2018**DON-TAY JEREMIAH**

Subscribed and sworn to before me
this 16 day of August, 2018

**NOTARY PUBLIC**

ALEXANDRA BELENKAYA
Commissioner of Deeds, City of New York
No. 4-10127
Certificate Filed in Kings County
Term Expires April 1, 2020